

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 22, 2026
9:00 a.m.

1. MARIA DE LA CRUZ V. JUAN DE LA CRUZ VAZQUEZ

SFL20210053

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on April 16, 2021.

It has come to the court’s attention that the Petitioner has recently deceased. Respondent has submitted a proposed judgment of dissolution.

The court notes there is no proof of service of summons in the court’s file. However, on May 11, 2021, Respondent filed a Response to the Petition for Dissolution. On May 04, 2023, at which time, both parties appeared in court, the court ordered the marriage dissolved. Based on these circumstances, the court is prepared to enter a judgment of dissolution nunc pro tunc to May 04, 2023.

The court directs the Respondent to submit a copy of Petitioner’s death certificate so the court can confirm the Petitioner is not entitled to notice of the proposed judgment before it is entered.

TENTATIVE RULING #1: THE COURT, ON ITS OWN MOTION, CONTINUES THE MATTER TO 8:30 A.M., WEDNESDAY, MAY 13, 2026, IN DEPARTMENT 12. THE RESPONDENT IS DIRECTED TO SUBMIT A COPY OF THE PETITIONER’S DEATH CERTIFICATE NO LATER THAN MAY 6, 2026.